



U.S. Department
of Transportation

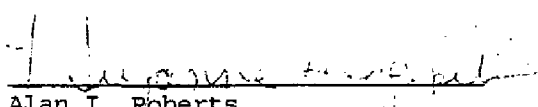
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 7269 (EXTENSION)
SECOND REVISION September 4, 1979

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7269 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

U.S. Department of Energy
Washington, DC

July 28, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590
DOT-E 7269
(SECOND REVISION - CORRECTED COPY)

1. U. S. Department of Energy (DOE), Washington, D.C., is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain Class A explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of sift-proof paper or plastic bags overpacked in DOT Specification 21C fiber drums, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

United Technologies Corporation, Sunnyvale, California - PTE-1.
Rockwell International Corporation, Canoga Park, California - PTE-2.

2. BASIS. This exemption is based on DOE's application dated February 23, 1979, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

United Technologies Corporation's application dated May 27, 1977.
Rockwell International Corporation's application dated April 25, 1979.

3. HAZARDOUS MATERIALS (Descriptor and class). Triaminotrinitrobenzene (TB), and trichlorotrinitrobenzene (TCTNB); classed as Class A explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101. High explosives.

5. REGULATION AFFECTED. 49 CFR 173.65(a).

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is strong inside sift-proof paper or plastic bags overpacked in a DOT Specification 21C fiber drum having a maximum net weight of 100 pounds. Inside bags must be cushioned so as to prevent movement inside the drum.

8. SPECIAL PROVISIONS.

a. Only DOE's contractors specifically identified to the Office of Hazardous Materials Regulation (OHMR) may use the packaging prescribed by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of content of the package must be reported to the OHMR as soon as practicable.

EXPIRATION DATE. July 1, 1981, for U. S. Department of Energy and PTE-2;
June 30, 1979, for PTE-1.

Issued at Washington, D.C.:

J. Roberts for

Jan I. Roberts

Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

4 SEP 1979

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: B of E, FHWA